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Germany

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Germany - Applicable Maximum Cadmium Level in Sunflower Kernels

Report Categories:

FAIRS Subject Report

Sanitary/Phytosanitary/Food Safety

Snack Foods

Oilseeds and Products

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Report Highlights:

In the absence of a legally binding maximum level for cadmium in sunflower kernels, Germany applies a non-binding "guideline value" published by the former Federal Institute for Health Related Consumer Protection and Veterinary Medicine (BGVV) in 1997. The value is set at 0.6 mg/kg wet weight.

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While guideline values are not legally binding, they are used to determine an "undesirably high level of contaminants in food." When guideline levels are exceeded, every level in the food chain from producer to food safety authorities is encouraged to search for and eliminate the source of contamination. In addition, food safety authorities can determine additional measures on a case by case basis. For example, they can impose restrictions on food being placed on the market or require its withdrawal from the market.

Background:

There is currently no binding maximum level for cadmium in sunflower kernels at the EU or German level. Soybeans are the only oilseed mentioned in commission regulation (EC) 1881/2006 on maximum levels for certain contaminants in foodstuffs. The maximum level for soybeans is set at 0.2 mg/kg wet weight. Germany does not have additional legislation.

Article 14 of EU regulation EC 178/2002 stipulates that food may only be placed on the market when it does not pose a health risk to consumers. In Germany, the authority to determine whether or not a food item is safe rests with the food safety authorities of the 16 federal states. The "*Working Group on Food Chemistry Experts of the Federal States and the BgVV*" issued a joined statement in March 2001, specifying that the BgVV guideline values shall continue to serve as a reference for all substance/product combinations that are not regulated in EU regulation 466/2001, superseded by regulation 1881/2006. This statement is still in force.

BgVV ceased to exist and was split into two agencies in November 2002, in the wake of the BSE crisis. This was done to separate risk assessment from risk management. The two resulting agencies are 1) the Federal Institute for Risk Assessment (Bundesinstitut fuer Risikobewertung, BfR) and 2) the Federal Office for Consumer Protection and Food Safety (Bundesamt fuer Verbraucherschutz und Lebensmittelsicherheit, BVL).

The regulatory authority for cadmium currently rests with the Ministry of the Environment on the grounds that cadmium contamination mostly results from the soil on which a food was grown (i.e. the environment) and not from pesticide application.

References:

Consolidated version of regulation 1881/2006: <https://eur-lex.europa.eu/legal-content/EN/TXT/?qid=1529044789108&uri=CELEX:02006R1881-20180319>

Consolidated version of regulation 178/2002: <https://eur-lex.europa.eu/legal-content/EN/TXT/?qid=1529568287957&uri=CELEX:02002R0178-20180701>

BfR website http://www.bfr.bund.de/en/facts_and_figures-54273.html

BVL website:

https://www.bvl.bund.de/EN/07_TheFederalOffice/01_Objectives/Objectives_node.html